

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Enoch Sowah	Team: Squad #07	CCRB Case #: 201901270	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 02/01/2019 12:00 AM, NA, __/__/2019 7:30 PM	Location of Incident: East 173rd Street and Hoe Avenue	18 Mo. SOL 2/15/2021	Precinct: 42
Date/Time CV Reported Wed, 02/06/2019 11:10 AM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Wed, 02/06/2019 11:10 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Joel Bolivar	17860	946793	042 PCT
2. POM Sandy Nunez	10829	956134	042 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Joel Bolivar	Abuse: Police Officer Joel Bolivar stopped § 87(2)(b)	A . Unsubstantiated
B . POM Sandy Nunez	Abuse: Police Officer Sandy Nunez stopped § 87(2)(b)	B . Unsubstantiated
C . POM Joel Bolivar	Abuse: Police Officer Joel Bolivar searched § 87(2)(b)	C . Unsubstantiated
D . POM Joel Bolivar	Abuse: Police Officer Joel Bolivar frisked § 87(2)(b)	D . Unsubstantiated
E . POM Joel Bolivar	Abuse: Police Officer Joel Bolivar failed to provide § 87(2)(b) with a business card.	E . Unsubstantiated
F . POM Sandy Nunez	Abuse: Police Officer Sandy Nunez failed to provide § 87(2)(b) with a business card.	F . Unsubstantiated

Case Summary

On February 6, 2019, § 87(2)(b) filed this walk-in complaint with the CCRB.

On an unknown date, at approximately 7:30 p.m., Police Officers Joel Bolivar and Sandy Nunez of the 42nd Precinct allegedly stopped § 87(2)(b) in the vicinity of East 173rd Street and Hoe Avenue in the Bronx (**Allegations A and B: Abuse of Authority, unsubstantiated**). PO Bolivar allegedly searched and frisked § 87(2)(b) (**Allegations C and D: Abuse of Authority, unsubstantiated**). PO Bolivar and PO Nunez failed to provide § 87(2)(b) with their business cards (**Allegation E and F: Abuse of Authority, unsubstantiated**).

No arrest or summons resulted from this incident.

There is no video evidence in this case.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Joel Bolivar stopped § 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer Sandy Nunez stopped § 87(2)(b)

Allegation (C) Abuse of Authority: Police Officer Joel Bolivar searched § 87(2)(b)

Allegation (D) Abuse of Authority: Police Officer Joel Bolivar frisked § 87(2)(b)

Allegation (E) Abuse of Authority: Police Officer Joel Bolivar failed to provide § 87(2)(b) with a business card.

Allegation (F) Abuse of Authority: Police Officer Sandy Nunez failed to provide § 87(2)(b) with a business card.

§ 87(2)(b) (BR01) said that on February 1, 2019, at approximately 7:30 p.m., he was walking in the vicinity of East 173rd Street and Hoe Avenue in the Bronx, when PO Bolivar, PO Nunez, identified via investigation, and an unidentified officer pulled up next to him in a grey Impala. § 87(2)(b) who was holding his vehicle's license plates in his hands, and was dressed in a black bubble jacket, green hoodie, blue jeans, and green sneakers, recognized PO Bolivar from a January 5, 2019, incident which resulted in § 87(2)(b)'s arrest.

The three officers exited from their vehicle, approached § 87(2)(b) and asked him what he was doing in the neighborhood. § 87(2)(b) said he visited a friend and was heading to his car. PO Bolivar asked § 87(2)(b) for his identification, which § 87(2)(b) provided. PO Bolivar briefly looked at the ID and returned it to § 87(2)(b). PO Bolivar then reached inside the side pockets of § 87(2)(b)'s bubble jacket, but recovered nothing. He also moved his hands around the outer layer of § 87(2)(b)'s front and back pants pocket, and grabbed the areas around each pocket. PO Bolivar and the two officers then returned to their vehicle and left. None of the officers informed § 87(2)(b) why he was stopped, frisked and searched, nor did they provide him with their business cards. § 87(2)(b) also denied that his cell phone, wallet, and car keys, which were the only items in his jacket and front pant pockets, respectively, created a bulge on his person.

PO Bolivar (BR02) and PO Nunez (BR03) both said that they were not working on February 1, 2019, and their respective memo book entries confirmed that the incident date § 87(2)(b) provided coincided with their regular day off from work (BR07-BR08). PO Nunez had no recollection of this incident, nor did he recall having had any interaction with § 87(2)(b) since his arrest on January 5, 2019.

PO Bolivar, on the other hand, acknowledged that he and PO Nunez interacted with § 87(2)(b) at the incident location subsequent to § 87(2)(b)'s arrest on January 5, 2019, but PO Bolivar did not recall the exact date of this interaction. PO Bolivar said he and PO Nunez were

driving in the vicinity of the incident location when they saw § 87(2)(b) walking on the street and holding a vehicle's license plate. PO Nunez, who was the operator of the unmarked vehicle, pulled up next to § 87(2)(b) and lowered the vehicle's driver's side window. PO Nunez and PO Bolivar both said hello to § 87(2)(b) and asked him about the status of his criminal case stemming from his January 5, 2019 arrest. PO Bolivar did not recall if § 87(2)(b) engaged with them or responded to their questions, but said the interaction with § 87(2)(b) was very brief and that they drove off within two minutes after pulling up next to him. PO Bolivar said that at no point did he or PO Nunez exit from their vehicle, nor did they consider or inform § 87(2)(b) that he was not free to leave. PO Bolivar denied frisking and searching § 87(2)(b) and said there was no reason to do so. PO Bolivar also said that he and PO Nunez did not give § 87(2)(b) their business cards because their interaction with § 87(2)(b) was a brief encounter.

§ 87(2)(g)

It is therefore recommended that **Allegations A through F** be closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to three CCRB complaints and has been a named victim in 13 allegations (BR04):
 - § 87(2)(b)
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- PO Bolivar has been a member-of-service for ten years and has been a subject in two CCRB complaints and one allegation, which was not substantiated. § 87(2)(g)
- PO Nunez has been a member-of-service for five years and has been a subject in three CCRB complaints and eight allegations, two of which were not substantiated and the remaining of which remain open. § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- On May 15, 2019, a Notice of Claim inquiry was sent to the NYC Office of the Comptroller, and the inquiry is still pending. The results will be added to the case file upon receipt (BR05).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
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[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date